

15. 9:00 AM CASE NUMBER: C25-02543
CASE NAME: DWAYNE ROBINSON VS. ALVARO PANAMENO
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: ROBINSON, DWAYNE CAMERON
TENTATIVE RULING:

Jose Alfonso Ramirez-Gomez and Jacoby & Meyers Attorneys LLP (“Counsel”) filed a motion to be relieved as counsel on January 23, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on June 8, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Dwayne Cameron Robinson (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a “breakdown and conflict in the attorney-client relationship, making it unreasonably difficult to carry out effective representation of Plaintiff.” See Declaration filed January 23, 2026, Attachment, ¶2 *et seq.*

No opposition or other response has been filed by Plaintiff. Counsel describes discussions with Plaintiff wherein Plaintiff consented to the withdrawal, but Plaintiff did not cooperate in signing paperwork to dismiss the case or substitute another attorney into it. *Id.* at ¶4-11.

Plaintiff has been given notice of the Motion to be Relieved as Counsel.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

16. 9:00 AM CASE NUMBER: C25-03271
CASE NAME: LESLIE GARDETTE VS. DAVID JOHNSON
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: JOHNSON, DAVID
TENTATIVE RULING:

Introduction

Defendants Diamond Ridge Post Acute, LLC d/b/a Diamond Ridge Healthcare Center; David Johnson; and Frank Johnson’s (collectively, “Defendants”) file a Motion to Compel Arbitration and to Stay Civil Action for an order compelling Plaintiff Leslie Gardette, individually and as heir and successor-in-interest to Donna Gardette, deceased (“Plaintiff”), to arbitrate all claims asserted in this action pursuant to the binding Arbitration Agreement executed in connection with Donna Gardette’s admission to Diamond Ridge Healthcare Center. Defendants further request that this action be stayed

pending completion of arbitration. Defendants filed their Motion on January 16, 2026.

The Motion relates to Plaintiff Leslie Gardette, individually and as heir and successor-in-interest to Donna Gardette's Complaint for (1) Negligence; (2) Elder Abuse/Neglect (Welfare and Institutions Code § 15600, et seq.); (3) Violation of Resident's Rights (Pursuant to Health & Safety Code § 1430(b)); and (4) Wrongful Death filed on November 06, 2025.

For the reasons articulated below, **Defendants' Motion to Compel Arbitration is GRANTED IN PART and DENIED IN PART**. The Court denies arbitration of the second cause of action for elder abuse and the third cause of action for violation of resident's rights. The Court compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.'" (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (*Id.* [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability...." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Analysis

Defendants' Initial Burden

Defendants provide an electronically signed copy of the Arbitration Agreement. (Garcia Decl. ¶ 6, Ex. A.) Plaintiff does not dispute the existence of the Arbitration Agreement. As such, Defendants have met their initial burden to establish the existence of an Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced.

Plaintiff's Electronic Signature

"If the moving party meets its initial prima facie burden [existence of an agreement] and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast*

Community Clinic (2021) 72 Cal.App.5th 158, 165.) Some examples of opposing the agreement include testifying under oath or declaring under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (Id.) A party opposing arbitration by challenging the authenticity of his or her signature “need not *prove* that his or her purported signature is not authentic but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Here, Plaintiff makes arguments that the e-signature could have been signed by anyone but did not present a declaration that someone else electronically signed the arbitration agreement. No declaration exists for the court to corroborate any of the arguments in Plaintiff’s opposition.

Unconscionability

The “unconscionability doctrine ‘has both a procedural and a substantive element.’” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) “The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.” (*Ibid.* quoting *Pinnacle, supra*, 55 Cal.4th at 246.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’” (*OTO, L.L.C.* 8 Cal.5th at 125.) “Instead, they are evaluated on a ‘sliding scale.’” (*Ibid.*) “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to ‘conclude that the term is unenforceable.’” (*Ibid.*) “Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required.” (*Ibid.*)

“The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Ibid.* quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 912.)

Procedural Unconscionability

Procedural unconscionability involves the components of “oppression” and “surprise.” (*OTO, supra*, 8 Cal.5th at 126.) “Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.” (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.) Surprise, for purposes of procedural unconscionability, “involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Ibid.*)

Minimal Oppression

A procedural unconscionability analysis ‘begins with an inquiry into whether the contract is one of adhesion.’” (*OTO, L.L.C., supra*, 8 Cal.5th at 126 quoting *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) “An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it

basis.” (*Ibid.* quoting *Baltazar v. Forever 21, Inc.* 2016) 62 Cal.4th 1237, 1245.)

Choice and Time to Sign the Agreement

Plaintiff argues that the Arbitration Agreement is procedurally unconscionable under the ‘oppression’ analysis because it is a contract of adhesion and in support of her argument points out that Defendant presented Plaintiff with the Agreement at a time of inherent unequal bargaining power, and Plaintiff signed the agreement after her 75-year-old elderly mother who was suffering from dementia, partial paralysis, and multiple prior strokes — had just undergone surgery and required professional wound care — and Plaintiff not have the time, leverage, or state of mind to carefully review and negotiate complex legal documents with a skilled nursing facility. (Opposition at p. 8: 1-7.)

Plaintiff’s argument about having a lack of meaningful choice is not convincing for three reasons. First, at the top of the Arbitration Agreement in a bold outlined box, in big, bolded letters reads: “Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility or to continue to receive care at the facility.” Second, Article VI of the agreement granted Plaintiff 30 days to rescind the agreement from the date of signing, giving her the choice to take back her decision to arbitrate her claims. Third, the timing at which the agreement was signed shows that Plaintiff had a meaningful choice to enter into the agreement. The Decedent was admitted on October 16, 2024, and began receiving treatment and care. Then 17 days later, Plaintiff chose to sign the agreement.

Remote Electronic Signature Without Oversight

As mentioned above, any disputes relating to the authenticity of the agreement, including the signatures, must be accompanied by declarations or affidavits. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) Plaintiff did not present a declaration denying that she did not sign the agreement or any facts surrounding her signing of the agreement, therefore her arguments cannot be considered by this court. Plaintiff’s contention that the timing difference of 13 minutes suggests that no one from the facility was present with Plaintiff when she signed is speculation that is unsupported by any other facts, context, or evidence. Thus, any argument relating to the electronic execution is improper because it is unsupported by evidence.

California courts recognize that the “adhesive aspect of an agreement is not dispositive.” (*Serpa v. Cal. Surety Investigations, Inc.*, (2013) 215 Cal.App.4th 695, 704.) “When . . . there is no other indication of oppression or surprise, ‘the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high.’” (*Id.*)

Failure to Provide Arbitration Rules

Plaintiff contends that the agreement fails to identify any arbitration organization or attach any rules governing the arbitration. No copy of JAMS, AAA Commercial, or any other recognized arbitration rules was provided. Instead, the Agreement provides only that a neutral arbitrator will be selected “using the rules of the Federal Arbitration Act (9 U.S.C. sections 1-16)” if the parties cannot agree. (Garcia Decl., Ex. A, Art. VIII, sec. 8.1.)

Defendants did not have to provide arbitration rules because the parties had not yet decided on an

arbitrator. A party's failure to provide arbitration rules is only unconscionable when the agreement states that the parties are to be bound by specific set of rules, such as AAA or Jams, and the rules are not provided. (See *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1470-71.) The agreement specifically states that "The parties shall mutually agree upon the appointment of a single neutral arbitrator." (See Garcia Decl., Ex. A, Article VIII.) This agreement does not identify which rules will bind the parties. Even if the Agreement did specify the governing ruled, the *Peng* Court noted that a failure to attach the governing arbitration rules is of minor significance in the analysis for procedural unconscionability. (Id. at 1471.)

Surprise

Surprise is generally found when a party hides an unconscionable provision in the agreement. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) *Davis* describes the arbitration clauses 67 and 49 lines long respectively, including a 15-line sentence, typed in small font, full of complex legal citations, and with little to no spaces or titles making the clauses visually impenetrable. (*Davis v. TWC Dealer Group, Inc.* (2019) 41 Cal.App.5th 662, 666-667.) The Agreement described in *Kho* was slightly over a page long, with extremely small font, a dense 51-line paragraph covering arbitration, which includes a 12-line long sentence that 'challenges the limits of legibility.'" (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 128.)

This is not the case with the instant Arbitration Agreement. The operative Arbitration Agreement is four pages long with titled provisions. The size and font type are not hard to read, and it is appropriately spaced for ease of reading. Although there are some laws that are listed, they are not accompanied with overly complicated legal citations or jargon. There are no particularly long paragraphs or sentences.

The *Desert Outdoor* Court observed the "cardinal rule of contract law is that a party's failure to read a contract, or to carefully read a contract, before signing it is no defense to the contract's enforcement." (*Desert Outdoor Advertising v. Superior Court* (2011) 196 Cal.App.4th 866, 872.) "When a person with the capacity of reading and understanding an instrument signs it, [s]he may not, in the absence of fraud, coercion or excusable neglect, avoid its terms on the ground that he failed to read it before signing it." (*Bolanos v. Khalatian* (1991) 231 Cal.App.3d 1586, 1590.) Even failure to understand the English language proficiently is not a defense to enforcing an arbitration provision or agreement, "it is incumbent upon the party to have it read or explained to him or her." (*Caballero v. Premier Care Simi Valley LLC* (2021) 69 Cal.App.5th 512, 519.)

Plaintiff argues that there is no evidence that she was informed she could decline the Agreement or that she had the opportunity to consult with counsel before signing. This argument is not persuasive.

For three years, Plaintiff, as Decedent's power of attorney, presumptively was reviewing and signing many medical documents containing similar provisions and arbitration agreements. Failure to read through the agreement is not a defense to enforce arbitration. Portions of the agreement are very straightforward. For example, the right to rescind is a stand-alone Article consisting of a short single sentence. Furthermore, Plaintiff's argument that she was under time pressure is defeated by the 17-day period she took to sign the arbitration agreement.

Thus, at most, any procedural unconscionability is minimal, requiring a heightened showing of

substantive unconscionability.

Substantive Unconscionability

Substantive unconscionability may be found where the substantive provisions of the agreement are so overly harsh or unreasonably favorable to the more powerful party that they undermine its neutrality. (*Sanchez, supra*, 61 Cal.4th at 910-11, 913; *Armendariz, supra*, 24 Cal.4th at 117.)

Substantive unconscionability focuses on the substantive fairness of the terms and whether the agreement is “unfairly one-sided.” (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071; *Baltazar v. Forever 21, Inc., supra*, 62 Cal.4th at 1248.) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Sanchez, supra*, 61 Cal.4th at 911-12.)

“A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to “shock the conscience.” [Citation omitted.]’” (*Pinnacle, supra*, 55 Cal.4th at 246 [quoting *24 Hour Fitness, Inc. v. Superior Court* (1998) 66 Cal.App.4th 1199, 1213].)

Arbitration Agreement is Bilateral

Plaintiff posits that the Arbitration Agreement is unfairly unilateral since a resident or family member could foreseeably bring against the Facility, while the Facility retains comparatively all benefits of the arrangement. (Opposition at p. 9: 20-25.)

A close examination of the Arbitration Agreement reveals that the Agreement is bilateral in that both parties are waiving their right to a jury and submit all their claims to arbitration. (See Garcia Decl., Ex. A, Article 1.1, 2.2.) Article II, section 2.3 provides “All parties to this Agreement are giving up their Constitutional right to have all disputes decided in a court of law before a jury, and instead are accepting the use of binding arbitration.” (See Garcia Decl., Ex. A, Article 1.1, 2.3.)

Arbitration Agreement Unlawfully Covers Non-Arbitrable Claims

Plaintiff contends that Article II Section 2.1 of the Arbitration Agreement may be deemed substantively unconscionable because it forces arbitration of “any dispute” relating to the “provision of care, treatment and services,” including “any action for injury or death arising from negligence, torts, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430).” (Oppo at p. 9: 26; 10: 1-4 citing Garcia Decl., Ex. A, Art. II, sec. 2.1.) The Court finds merit in Plaintiff’s contention.

Arbitration of the Elder Abuse and Resident’s Rights Causes of Action Cannot Be Compelled

Anyone may waive the advantage of a law intended solely for their benefit. But a law established for a public reason cannot be contravened by a private agreement. (Civ. Code, § 3513.)

Legislature's expression of public policy through their legislation makes clear that under no circumstances may a patient or resident waive his or her right to sue for violations of rights under the

Patients Bill of Rights, or other federal and state laws and regulations, which would include the existing Elder Abuse and Dependent Adult Civil Protection Act. (*Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 476.) The First District Court of Appeal reasoned that courts should rule, consistent with public policy expressed in the statutes enacted by the Legislature to protect a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect, and to ensure appropriate relief for such mistreatment. (Id.)

Therefore, Plaintiff's second cause of action for elder abuse and third cause of action for resident's rights cannot be compelled to arbitration.

Arbitration of the Wrongful Death Claims Can Be Compelled

Plaintiff's reliance on *Holland v. Silver Screen* (2025) 18 Cal.5th 364 is misplaced. Plaintiff argues that *Holland* holds that an arbitration agreement signed by a decedent does not bind heirs. (Opposition at p. 11:2-3.) This is inaccurate. *Holland* merely remanded that matter to give plaintiffs a chance to provide additional details before determining whether their wrongful death claim falls within the scope of Code of Civil Procedure section 1295 and thus must be ordered to arbitration. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 385.)

Plaintiff also cited that the Ninth Circuit observed, "a non-signatory cannot be compelled to arbitrate absent some showing that it was the intent of the parties to bind the non-signatory to the arbitration agreement." (*Kramer v. Toyota Motor Corp.* (9th Cir. 1989) 705 F.2d 1122, 1130.) This cuts in favor of Defendants.

The subject Arbitration Agreement expressly provides in multiple places that the signatory is signing the Arbitration Agreement on behalf of the resident and themselves as an individual:

ARTICLE III **(Scope of Agreement)**

3.1 This Agreement shall be binding for any dispute, except for disputes pertaining to collections or evictions. This Agreement is binding on all parties, including the Resident's representatives, executors, family members, and heirs who bring any claims individually or in a representative capacity. The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the signature line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by any such representatives, agents, executors, family members, representatives, successors in interest and heirs are subject to binding arbitration.

By virtue of Resident's consent, instruction and/or durable power of attorney, I hereby certify that I am authorized to act as Resident's agent in executing and delivering of this arbitration agreement. I acknowledge that the Facility is relying on this representation. I also acknowledge that pursuant to the terms of this agreement, any claims that I may assert in my individual capacity and/or as a successor in interest that arise out of or relate to the provision of or failure to provide any services (medical or otherwise) or goods by the Facility to the Resident or the admission agreement are governed by this arbitration agreement.

Date: November 02, 2024 GMT

E-SIGNED by Leslie Gardette
on 2024-11-02 15:11:48 PDT

Legal Representative/Agent of Resident and
Individually

Date: November 02, 2024 GMT

E-SIGNED by Christine Garcia
on 2024-11-02 14:58:43 PDT

Facility Representative

7267623.2

4

Thus, Plaintiff's sixth cause of action for wrongful death must be compelled to arbitration.

Severability

"An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms." (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 223.) Severance may be properly denied when the agreement contains more than one unconscionable provision, and "there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement." (*Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 738.)

Here, the Court locates one unenforceable term, which is severable.

The Court agrees that the provision which compels arbitration of statutory claims concerning all California Welfare and Institutions Code sections and Health and Safety Code section 1430 claims is unenforceable. See the portion of the Arbitration Agreement highlighted below.

ARTICLE II

(Other Claims)

2.1 It is further understood that any dispute between Resident, including Resident's heirs and/or agents, and Diamond Ridge Healthcare ("Facility"), and their owners, investors, operators, officers, directors, administrators, staff, employees, agents, and any management and administrative services company and all related entities and individuals, their staff, personnel, employees, owners, officers, directors, members, and agents that provide services to the Facility that relates to the provision of care, treatment and services the Facility provides to the Resident, (collectively referred to herein as "Facility"), including any action for injury or death arising from negligence, torts, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430), and all other statutory claims under any applicable California code, will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings.

7767623.2

1

Therefore, the Court strikes the highlighted term from the Arbitration Agreement.

On balance, Plaintiff has failed to meet her burden to show that the Arbitration Agreement should not be enforced due to unconscionability. Thus, Defendant's motion to compel arbitration shall be partially granted.

Stay

Under the FAA, courts must stay an action where "the issue involved in such suit or proceeding is referable to arbitration under an arbitration "agreement." (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding "section 4 of the USAA does not apply in California court" but not deciding whether section 3 applies].)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 ["the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants"]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court's inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

The FAA applies here as it is expressly stated in the Agreement that the FAA applies and that the

California Code of Civil Procedure does not govern. (Garcia Decl., Ex. A, Article VII, 7.1-7.3.)

The arbitration agreements in this case are governed by the FAA. CCP § 1281.2 does not apply when the FAA's rules govern. (*Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1115-16.)

Under the Federal Arbitration Act, 9 U.S.C. section 1 et seq. (FAA), the court's only option in these circumstances is to stay the court proceeding and compel the arbitration." (*Rodriguez, supra*, 136 Cal.App.4th at 114-115.)

Conclusion

For the reasons analyzed above, **Defendants' Motion to Compel Arbitration is GRANTED IN PART and DENIED IN PART.** The Court denies arbitration of the second cause of action for elder abuse and third cause of action for resident's rights. The Court compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

17. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: LABOR COMMISSION JUDGMENT
FILED BY:

TENTATIVE RULING:

The matter was originally set for hearing on June 1, 2026 when the matter was filed on January 20, 2026. That hearing was later continued to June 8, 2026. There is currently a hearing set for September 14, 2026 on plaintiff's motion filed April 21, 2026 regarding service of the Summons and Complaint. Given the present lack of service, the hearing is VACATED at this time and can be reset as appropriate in connection with case management proceedings in the matter once service of process is done or as the Court may otherwise hereafter order.

18. 9:00 AM CASE NUMBER: C26-00231
CASE NAME: JANE DOE VS. BRANDON BANKS
***HEARING ON MOTION IN RE: FOR LEAVE TO PROCEED UNDER A PSEUDONYM**
FILED BY: DOE, JANE

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff's Motion to Proceed Under a Pseudonym ("Motion") on the grounds that public identification in this action would expose her to concrete, collateral legal and contractual harm unrelated to the merits of her claims.

For the following reasons, Plaintiff's Motion to Proceed Under a Pseudonym is **DENIED**.

Factual Background

In July 2024, Plaintiff retained Defendants to represent her in pursuit of claims including gender-based pay discrimination, retaliation, and constructive termination against her Former Employer. At the time of retention, Plaintiff had already secured new employment. After Defendants filed a public